

Before the
FEDERAL MARITIME COMMISSION

Docket No. 2010 (F)

Simple Forwarding, Inc.

v.

China United Lines Ltd. *aka* CULines and Norton Lilly International

MOTION FOR RELIEF FROM ORDER REQUESTING ADDITIONAL INFORMATION AND
ORDERING RESPONDENTS TO ANSWER

Complainant Simple Forwarding Inc., by and through its undersigned Representative, respectfully submits this Motion for Relief from ORDER REQUESTING ADDITIONAL INFORMATION AND ORDERING RESPONDENTS TO ANSWER, dated November 14th, 2024.

INTRODUCTION

This Motion seeks Relief from the Order dated November 14th by the Honorable Judge Richard Ambrow, which appears to rely on prior filings no longer applicable to the current Amended Complaint, overlooks the superseding Amended Complaint, and imposes dual deadlines that create procedural challenges.

BACKGROUND

On May 28, 2024 Complainant Simple Forwarding Filed an Initial Verified Complaint against Respondents alleging violations of 46 U.S.C. § 41102(c) and Section 545.4 of the Code of Federal Regulations, and the Interpretive Rule on Demurrage and Detention Under the Shipping Act. On June 21, 2024 Jeffrey/Fenneman Law + Strategy (“JFLS”) filed a Notice Of Special Appearance “for the limited purpose of challenging the Commission’s service of process on CUL, its personal jurisdiction over CUL, and its subject matter jurisdiction over the Complaint as it applies to CUL.” JFLS then on July 31, 2024, filed a Verified Response to the Complaint on behalf of their clients, and Complainant filed their Response to this on August 25, 2024 where they indicated they would be filing an Amended Complaint.

On September 3, 2024, JFLS filed a Notice of Withdrawal, stating:

“The law firm of Jeffrey/Fenneman Law & Strategy (‘JFLS’) and individual JFLS attorneys Rebecca Fenneman, Eric Jeffrey, Kaya Massey, and Nicholas Webb file this Notice of Withdrawal of their Special Appearance in this proceeding. Complainant has made clear in its August 25, 2024 Response that the entity against which it seeks relief is ‘China United Lines Ltd aka CULines.’ JFLS does not represent, and never has represented, any such entity. Not having any client in this proceeding, JFLS necessarily withdraws its special appearance.”

(Notice of Withdrawal, ¶2)

JFLS offered a clear withdrawal from the case and an explicit declaration that they have never represented the named party in the Amended Complaint.

On September 11, 2024, Complainants filed a Motion for, and were granted leave to, file an Amended Complaint (ORDER REGARDING CLAIMANT’S MOTION FOR LEAVE TO AMEND COMPLAINT AND REQUEST FOR RETURN TO INFORMAL ADJUDICATION, October 4, 2024).

Upon filing the Amended Complaint which was served on October 8, 2024, all previous responses, motions, or otherwise, related to the Initial Verified Complaint were rendered moot. All pleadings and directives should hereafter address the Amended Complaint only.

Complainant’s Response to Respondent CULines Verified Response in this matter included a REQUEST TO STRIKE PORTIONS OF RESPONDENT’S VERIFIED ANSWER (COMPLAINANT’S RESPONSE TO RESPONDENT’S VERIFIED ANSWER OF CULINES TO [sic] COMPLAINT OF SIMPLE FORWARDING, *1) precisely because they were prejudicial. The Complainant’s prior Request to Strike prejudicial material from the record remains unaddressed by the Commission. This oversight has directly contributed to the prejudice outlined herein as it has allowed prejudicial material to stay in the record and has denied the Complainant its right to a Decision.

Additionally, the Presiding Officer imposed a compliance deadline for the Order and an additional, unasked-for extension of Respondents’ time to reply to the Amended Complaint, which further prejudices the Complainant.

LEGAL STANDARD

Federal Rule of Civil Procedure 60(b), which states that:

“On motion and just terms, the court may relieve a party or its legal representative from a final judgment, order, or proceeding for the following reasons:

(1) mistake, inadvertence, surprise, or excusable neglect;

- (2) newly discovered evidence that, with reasonable diligence, could not have been discovered in time to move for a new trial under Rule 59(b);
- (3) fraud (whether previously called intrinsic or extrinsic), misrepresentation, or misconduct by an opposing party;
- (4) the judgment is void;
- (5) the judgment has been satisfied, released, or discharged; it is based on an earlier judgment that has been reversed or vacated; or applying it prospectively is no longer equitable; or
- (6) any other reason that justifies relief.”

ARGUMENTS

1. The Amended Verified Complaint Supersedes the Initial Pleading

Following the filing of an Amended Complaint, any filings relevant to the Initial Verified Complaint, including those relied upon by the Presiding Officer in the Order, are moot and no longer relevant.

Reliance on outdated, irrelevant filings negatively impacts the Complainant. These filings, that are superseded by the Amended Complaint; are disconnected from the current legal posture, potentially creating confusion regarding the case’s factual and legal context. This disconnection risks leading to decisions not aligned with the Complainant’s actual claims and intentions.

The Complainant faces the risk of dismissal due to non-compliance with an Order based on prejudicial materials that no longer pertain to the Amended Complaint. Courts must ensure fairness by considering only filings that accurately reflect the current case. Using prior filings from counsel who claim never to have represented a named party in the Initial or Amended Complaint introduces a

substantial risk of injustice, as the Complainant's rights to a fair adjudication are undermined, and this creates a procedural imbalance. This approach ignores the superseding effect of the Amended Complaint, disadvantaging the Complainant by unfairly depending on material that no longer reflects the current legal framework or past context. Consequently, this raises a significant risk of injustice and procedural imbalance. These filings cannot serve as a basis for an Order and must be excluded from consideration.

It is a well-established legal principle that amended Complaints supersede Initial Complaints and that courts must evaluate cases based on the most current legal and factual pleadings, ensuring that outdated filings do not improperly influence decisions.

““As a general rule, 'an amended pleading ordinarily supersedes the original and renders it of no legal effect.'" *Young v. City of Mount Ranier*, 238 F.3d 567, 572 (4th Cir. 2001) (quotations omitted); *see also Brown v. Phillips*, 2018 WL 576307, at *2 (W.D.N.C. Jan. 26, 2018).” *Geiger v. H.H. Franchising Sys., Inc.*, DOCKET NO. 3:17-cv-00738-FDW-DSC, (W.D.N.C. Jun. 11, 2018)

“An amended complaint supersedes the original complaint and renders it of no legal effect unless the amended complaint specifically refers to and adopts or incorporates by reference the earlier pleading. *Boelens v. Redman Homes, Inc.*, 759 F.2d 504, 508 (5th Cir. 1985).” *King v. Dogan*, 31 F.3d 344, 346 (5th Cir. 1994)

The principle that amended pleadings supersede initial filings ensures that only the most recent and accurate statements of a party's position are considered in the judicial process. When a party files an Amended Complaint, as was done here, it serves to replace prior complaints entirely, thereby rendering any earlier pleadings irrelevant.

“Omni’s motion to dismiss the complaint is now moot, given that TPG has been granted leave to amend its complaint and the amended complaint supersedes the original complaint.”

THOMPSON PIPE GROUP, INC., v. OMNI LOGISTICS LLC, Docket No. 22-31, 2023 *3 ¶1
(ORDER ON MOTION TO AMEND COMPLAINT AND MOTION TO DISMISS, February 24, 2023)

The Federal Rules of Civil Procedure, allows for the amendment of pleadings to ensure justice and accuracy. Specifically, Rule 15(a)(2):

“In all other cases, a party may amend its pleading only with the opposing party's written consent or the court's leave. The court should freely give leave when justice so requires.”

This flexibility ensures that procedural documents reflect the current understanding of the parties and the court, preventing the misapplication of outdated information.

The Amended Verified Complaint supersedes the Initial Complaint. This transition is not merely procedural but foundational, as it updates the factual and legal assertions to better align with the ongoing development of the case. Reliance on earlier pleadings, which may no longer accurately reflect the parties' intentions or the facts of the case, could lead to unfair and unjust outcomes. A Complaint that has not been filed cannot logically be challenged through a Motion to Dismiss or a Response. Thus, any Motions, Arguments, or Decisions based on the original Complaint are no longer applicable.

Additionally, as well established in law, including Commission Orders, superseded pleadings and Motions are inherently prejudicial and moot because they no longer reflect the parties’ most accurate legal and factual positions. The integrity of the judicial process relies on the accuracy and relevance of the pleadings submitted, and any deviation from this standard compromises the fairness and reliability of the proceedings.

“... MTL has been granted leave to amend its complaint and the revised amended complaint supersedes the original complaint.” MARINE TRANSPORT LOGISTICS, INC., v. CMA-CGM (AMERICA), LLC, Docket No. 22-23, *4 ¶1 (ORDER ON REVISED MOTION TO AMEND COMPLAINT AND MOTION TO DISMISS, December 08, 2022)

Of note, Respondent Norton Lilly has of this date, not formally responded in any capacity to either the Initial Verified Complaint or the Amended Complaint, further compounding the procedural imbalance.

2. Simultaneous Deadlines for Respondents’ Answer and Complainant’s Compliance with the Order and Contents of the Order are Prejudicial to the Complainant

The Honorable Judge Ambrow’s Order establishes a compliance deadline for the Complainant that coincides with the Respondents’ deadline to answer the Amended Verified Complaint. This overlap places an undue burden on the Complainant while allowing Respondents to delay accountability for their continued non-engagement. Respondents have been granted multiple extensions of time by the Commission, contributing to procedural delays that impact the Complainant. This procedural imbalance severely impacts the Complainant’s ability to effectively manage this case. Without a substantive Response from Respondents, which is an admission by Respondents of the facts claimed by Complainant in their Amended Complaint, Per 46 C.F.R. §502.62 (6)(i):

“Failure of a party to file an answer to a complaint, counterclaim, crossclaim, or third-party complaint within the time provided will be deemed to constitute a waiver of that party's right to appear and contest the allegations of the complaint, counterclaim, crossclaim, or third-party complaint to which it has not filed an answer and to authorize the presiding officer to enter an

initial decision on default as provide for in 46 CFR 502.65. Well pleaded factual allegations in the complaint not answered or addressed will be deemed to be admitted.”

The Complainant is left without critical information needed to address defenses and disputes when being confronted with an Order such as this; ultimately jeopardizing their right to a fair and balanced adjudication. The Complainant alone cannot be expected to navigate a partial legal framework, thereby placing them at a distinct disadvantage. The Complainant is already navigating a case with non-compliant and unresponsive Respondents while contending with delays and inaction resulting from extensions and Orders issued by the Commission. This Order compels the Complainant to address issues not yet raised by the Respondents, which could contribute to procedural challenges and impact the fairness of the case.

By imposing simultaneous deadlines, the Commission compels the Complainant to act without clarity regarding the Respondents’ positions or defenses. The Amended Verified Complaint, which defines the scope of the claims, remains unanswered. Without a Respondents’ answer, the issues in dispute remain undefined. This creates an untenable situation for the Complainant: they must either risk dismissal by not complying with an order based on an incomplete procedural framework or comply with directives that may irreparably prejudice their case.

This deadline structure also incentivizes delay tactics by the Respondents, who have repeatedly failed to meaningfully engage with the Commission or this case. Treating the matter as procedurally complete ignores the fundamental requirement for Respondents to articulate their positions and shifts an undue burden onto the Complainant. Such an approach deprives the Complainant of the opportunity to respond meaningfully to issues that should first be clarified by the Respondents’ Answer.

To ensure procedural fairness and preserve the integrity of the proceedings, compliance requirements for the Complainant should follow, not precede, the Respondents’ fulfillment of their

obligation to answer the Amended Verified Complaint and provide substantive arguments. This adjustment is essential to safeguarding the Complainant's right to an equitable and efficient adjudication of their claims.

REQUEST FOR RELIEF

Complainant respectfully requests that the Administrative Law Judge grant this Motion for Relief from the ORDER REQUESTING ADDITIONAL INFORMATION AND ORDERING RESPONDENTS TO ANSWER, and vacate the Order dated November 14th, 2024, allowing the case to proceed based on the most current legal and factual context.

DUTY TO CONFER

Pursuant to 46 C.F.R. § 502.71(a), Complainant attempted to confer with Respondents CULines and Norton Lilly International, but did not receive an answer from either Respondent.

I, Sara Dandan, have been admitted to general practice before the Federal Maritime Commission. I respectfully submit this Motion on behalf of Complainant Simple Forwarding Inc.

Sara Dandan

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Signature: 

Date: 12/13/2024

CERTIFICATE OF SERVICE

I certify that on December 13th, 2024, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

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